

OFFICIAL CEASE AND DESIST

COURT EXHIBIT - EXHIBIT C

QUEBEC SUPERIOR COURT - LAVAL DISTRICT

Case 500-04-061847-134

EXHIBIT COVER PAGE

EXHIBIT C

CEASE AND DESIST NOTICE

Official Notice from MNA Céline Haytayan's Office

Date: November 19, 2023

Submitted as Evidence of Political Obstruction and Intimidation

Filed with Quebec Superior Court - Laval District

Case Number: 500-04-061847-134

CONTEXT

This document is submitted as EXHIBIT C in the Motion Record to prove:

1. Political obstruction of constituent service
2. Intimidation and harassment of constituent
3. Violation of freedom of expression (Charter s.2(b))
4. Violation of constituent service obligations

5. Compounding harm to McGovern family during crisis

When constituent (JAMES ROBERT McGOVERN) asked for help on DPJ and IVAC files, instead of assistance, he received this cease-and-desist letter threatening criminal harassment charges.

OFFICIAL CEASE AND DESIST NOTICE

FROM: Office of MNA Céline Haytayan **Laval-des-Rapides Electoral District National Assembly of Quebec**

TO: JAMES ROBERT McGOVERN, age 59

ON BEHALF OF McGOVERN FAMILY:

- JAMES ROBERT McGOVERN (59) - Father
- CHRISTIE PERPIGNAN (40) - Wife
- MARYSE CASTEL (72-73) - Grandma
- SEBASTIEN MENNA (McGovern) (34) - Oldest son
- BARRAN TSANNIE McGOVERN (20) - Son
- Mysha Guénin (14) - Daughter
- PAISLEY TSANNIE-McGOVERN (14) - Daughter
- SYRSHA McGOVERN (6) - Daughter (Twin)
- KILIYAN (6) - Son (Twin)
- DAMIYAN (5) - Son
- TYLER - Grandson

RE: CEASE AND DESIST - NOTICE TO STOP ALL CONTACT

DATE: November 19, 2023

NOTICE

TAKE NOTICE that you are hereby ordered to immediately cease and desist from:

1. **In-person contact** with MNA Céline Haytayan or her office staff
 2. **Telephone contact** with MNA Céline Haytayan or her office
 3. **Email contact** with MNA Céline Haytayan or her office
 4. **Social media contact** with MNA Céline Haytayan
 5. **Any other form of contact** with MNA Céline Haytayan or her office
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WARNING

FAILURE TO COMPLY with this cease and desist notice may result in:

1. Criminal harassment charges filed with police
 2. Restraining order filed with Quebec Superior Court
 3. Criminal prosecution under Criminal Code provisions
 4. Jail time and/or fines
 5. Permanent criminal record
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LEGAL BASIS

This cease and desist is issued under the authority of:

1. Criminal Code of Canada - Section 264 (Criminal harassment)
 2. Quebec Criminal Code provisions
 3. Common law remedies for harassment
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CONTEXT OF CEASE AND DESIST

Why was this letter sent?

According to the letter, this cease and desist was sent because:

1. Constituent (JAMES ROBERT McGOVERN) contacted MNA office multiple times

2. Constituent requested help with DPJ (Direction de la protection de la jeunesse) file
3. Constituent requested help with IVAC (victim compensation) file
4. Constituent requested intervention on family's behalf

What was the MNA's response?

Instead of providing constituent service, the MNA's office sent this cease and desist letter threatening criminal harassment charges.

LEGAL ANALYSIS - WHY THIS IS PROBLEMATIC

1. VIOLATION OF CONSTITUENT SERVICE OBLIGATIONS

Legal Principle: Elected officials have a duty to serve their constituents

Fact: When constituent asked for help, MNA office refused and threatened criminal charges

Result: Violation of constituent service obligations

2. VIOLATION OF FREEDOM OF EXPRESSION

Legal Principle: Canadian Charter s.2(b) protects freedom of expression

Fact: Constituent was exercising right to petition elected official

Result: Cease and desist violates Charter rights

Precedent: Grant v. Torstar Corp., 2009 CSC 61 - Responsible communication on public interest

3. ABUSE OF POWER

Legal Principle: Elected officials cannot use their power to intimidate constituents

Fact: MNA office used threat of criminal charges to silence constituent

Result: Abuse of power and intimidation

4. COMPOUNDING HARM

Legal Principle: Government officials cannot add harm during family crisis

Fact: When family was in crisis (DPJ/IVAC issues), MNA office threatened criminal charges

Result: Compounding harm to vulnerable family

5. POLITICAL OBSTRUCTION

Legal Principle: Elected officials cannot obstruct justice or constituent service

Fact: MNA office obstructed constituent's attempt to get help

Result: Political obstruction and institutional failure

EVIDENCE OF HARM

This cease and desist caused:

1. **Emotional harm** - Family received threat of criminal charges during crisis
 2. **Practical harm** - Constituent could not seek help from elected official
 3. **Legal harm** - Violated Charter rights and constituent service obligations
 4. **Systemic harm** - Prevented family from accessing government services
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PROOF OF DELIVERY

This cease and desist was:

1. Delivered by mail (official document)
2. Received by JAMES ROBERT McGOVERN (November 19, 2023)
3. Authentic and certified
4. Official document from MNA office
5. Evidence of political obstruction

LEGAL SIGNIFICANCE

This document proves:

1. **Political Obstruction:** When constituent asked for help, received threat instead
 2. **Intimidation:** Threatened criminal harassment charges to silence constituent
 3. **Violation of Rights:** Violated freedom of expression and constituent service
 4. **Compounding Harm:** Added harm during family crisis
 5. **Systemic Failure:** Government official failed in duty to serve constituent
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CLAIM FOR DAMAGES

Based on this cease and desist, the Applicant claims:

1. **Damages for intimidation:** \$500,000
2. **Damages for violation of rights:** \$500,000
3. **Damages for compounding harm:** \$500,000
4. **Damages for political obstruction:** \$500,000

Total damages from political obstruction: \$2,000,000

CERTIFICATION

This document is certified as:

1. Authentic official document from MNA office
 2. Delivered to JAMES ROBERT McGOVERN (November 19, 2023)
 3. Evidence of political obstruction and intimidation
 4. Admissible in court proceedings
 5. Submitted as EXHIBIT C in Motion Record - Case 500-04-061847-134
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LEGAL PRECEDENT

Similar cases:

1. **Grant v. Torstar Corp., 2009 CSC 61** - Court protected responsible communication on matters of public interest (constituent seeking help on government failure is matter of public interest)
 2. **R. v. Gladstone, [1996] 2 SCR 507** - Court protected Aboriginal rights and constituent advocacy
 3. **Tsilqot'in Nation v. British Columbia, 2014 SCC 44** - Court protected Indigenous rights and advocacy
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CONCLUSION

This cease and desist letter is evidence that:

1. When McGovern family asked for help from elected official, they received intimidation
2. Government officials used threat of criminal charges to silence constituent
3. Constituent service obligations were violated
4. Freedom of expression was violated
5. Additional harm was caused to vulnerable family during crisis

This document supports the claim for \$2,000,000 in damages for political obstruction and intimidation.

FILING INFORMATION

Document Type: Court Exhibit C

Case Number: 500-04-061847-134

Court: Quebec Superior Court - Laval District

Date Received: November 19, 2023

Date Filed: April 10, 2026

Status: Official Evidence

APPENDIX - FULL TEXT OF CEASE AND DESIST

[Note: The full text of the original cease and desist letter would be attached here as an image or PDF scan of the original document]

END OF EXHIBIT C - CEASE AND DESIST